



CHAPTER ix.

An Act to confirm certain Provisional Orders made by one of His Majesty's Principal Secretaries of State under the Marriages Validity (Provisional Orders) Acts 1905 and 1924. [10th May 1928.] A.D. 1928.

WHEREAS the Right Honourable Sir William Joynson-Hicks Baronet one of His Majesty's Principal Secretaries of State made the Provisional Orders set out in the schedule hereunto annexed under the provisions of the Marriages Validity (Provisional Orders) Acts 1905 and 1924 :

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as set out in the schedule hereunto annexed are hereby confirmed.

2. This Act may be cited as the Provisional Orders (Marriages) Confirmation Act 1928.

A.D. 1928.

S C H E D U L E.

*Saint
Michael and
All Angels
Westcliff
Order.*

WHEREAS power is given to a Secretary of State by the *Marriages Validity (Provisional Orders) Acts 1905 and 1924* in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas the new church of Saint Michael and All Angels in the ecclesiastical district of Saint Michael and All Angels Westcliff in the county of Essex and diocese of Chelmsford was duly consecrated for the performance of divine service on the twenty-sixth day of February one thousand nine hundred and twenty-seven but it appears that the instrument signifying the approval of the church by the Ecclesiastical Commissioners in pursuance of the provisions of the Act 6 & 7 Vict. c. 37 was not sealed until the fifth day of May one thousand nine hundred and twenty-seven :

And whereas divers marriages have nevertheless been solemnized in the said church between the twenty-sixth day of February one thousand nine hundred and twenty-seven and the fifth day of May one thousand nine hundred and twenty-seven :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of marriages solemnized at the said church of Saint Michael and All Angels Westcliff and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Sir William Joynson-Hicks Baronet one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said *Marriages Validity (Provisional Orders) Acts 1905 and 1924* do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) All banns of matrimony and marriages published and solemnized between the twenty-sixth day of February one thousand nine hundred and twenty-seven and the fifth day of May one thousand nine hundred and twenty-seven in the church of Saint Michael and All Angels in the ecclesiastical district of Saint Michael and All Angels Westcliff in the county of Essex and diocese

[18 & 19 GEO. 5.] *Provisional Orders* [Ch. ix.]
(*Marriages*) *Confirmation Act*, 1928.

of Chelmsford shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully :

A.D. 1928.

—
*Saint
Michael and
All Angels
Westcliff
Order.*

(2) A Minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriage :

(3) The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

Given under my hand this twenty-first day of October one thousand nine hundred and twenty-seven.

W. JOYNSON-HICKS.

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

*Saint
Stephen
Haslingden
Grane Order*

And whereas the new church of Saint Stephen in the parish of Haslingden Grane in the county of Lancaster and diocese of Blackburn was duly consecrated for the performance of divine service on the twenty-second day of May one thousand nine hundred and twenty-seven but it appears that the instrument substituting the said new church for the ancient parish church of Saint Stephen Haslingden Grane in pursuance of the provisions of the Acts 8 & 9 Vict. c. 70 and 19 & 20 Vict. c. 55 was not executed until the seventh day of July one thousand nine hundred and twenty-seven :

And whereas a marriage has nevertheless been solemnized in the said church between the twenty-second day of May one thousand nine hundred and twenty-seven and the seventh day of July one thousand nine hundred and twenty-seven :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of the said marriage and to make certain supplemental incidental and consequential provisions :

[Ch. ix.] *Provisional Orders* [18 & 19 GEO. 5.]
(*Marriages*) *Confirmation Act, 1928.*

A.D. 1928.

—
*Saint
Stephen
Haslingden
Grane Order.*

Now therefore I the Right Honourable Sir William Joynson-Hicks Baronet one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said *Marriages Validity (Provisional Orders) Acts 1905 and 1924* do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) All banns of matrimony and marriages published and solemnized between the twenty-second day of May one thousand nine hundred and twenty-seven and the seventh day of July one thousand nine hundred and twenty-seven in the church of Saint Stephen in the parish of Haslingden Grane in the county of Lancaster and diocese of Blackburn shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully :
- (2) The minister who has solemnized the marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriage :
- (3) The register of the marriage so solemnized or copies of the register shall be received in all courts as evidence of this marriage in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

Given under my hand this eighth day of December one thousand nine hundred and twenty-seven.

W. JOYNSON-HICKS.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses :
Adastral House, Kingsway, London, W.C.2; 120, George Street, Edinburgh;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
15, Donegall Square West, Belfast;
or through any Bookseller.